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JUDGMENT SHEET

LAHORE HIGH COURT

MULTAN BENCH MULTAN

JUDICIAL DEPARTMENT

W.P. No.11759 of 2024

Mst. Saima Rani Vs. Addl. District Judge, etc.

J U D G M E N T

Date of Hearing:	14.10.2025
Petitioner by:	Prince Rehan Iftikhar Sheikh, Advocate. Mr. Muhammad Adeel Shah, Advocate.
Respondent No.3 by:	Mr. Muhammad Zubair-ul- Hassan Chishti, Advocate.

Anwaar Hussain, J. Petitioner seeks restoration of the decree passed by the Family Court whereby her claim for dower (*Haq Mahr*) was decreed to the extent of a five *marla* house, while her claim regarding dowry articles was partly accepted. Both the Courts below are concurrent on the question of dowry articles, but at variance on the issue of dower. The Family Court through its judgment dated 11.03.2024 decreed the suit holding that the petitioner was entitled to a five *marla* house as *Haq Mahr*. However, the Appellate Court below, *vide* judgment dated 04.06.2024, set aside that finding and dismissed the claim of the petitioner to that extent.

2. Learned counsel for the petitioner contends that the *Nikah Nama* is a registered document and carries a presumption of correctness. In column No.16 thereof, a five *marla* house is specifically recorded as *Haq Mahr*. It is argued that the Appellate Court below ignored this entry and instead proceeded on an assumption that since property belonging to respondent No.3 (“**the respondent**”) had been

transferred to the petitioner ten days before the marriage, by way of sale, such transfer represented the discharge of *Haq Mahr*. Learned counsel submits that this reasoning is wholly conjectural and contrary to the record.

3. Conversely, learned counsel for the respondent argues that the marriage between the parties was not arranged and the respondent had been emotionally influenced by the petitioner. It is contended that while under that emotional sway, the respondent executed a sale deed in favour of the petitioner, ten days prior to the marriage, and that transaction effectively represented discharge of *Haq Mahr* obligation. Hence, the decision of the Appellate Court below is in accordance with law.

4. In rebuttal, with regard to the sale deed, the petitioner's stance is that there was a prior acquaintance between the families, and the respondent intended to sell his property, which the petitioner's father purchased and got it transferred in the petitioner's name. As the petitioner had affection for the respondent, their marriage ultimately took place, *albeit* against the wishes of the family of the respondent and therefore, the respondent started residing in the same house alongwith the petitioner and her parents.

5. Arguments heard. Record perused.

6. This case presents an interesting factual and legal situation. It is indeed unusual that a couple, if not previously related, would enter into a property transaction only ten days before their marriage, and subsequently the same property becomes the subject of dispute as to whether it was a sale transaction or discharge of dower obligation prior to *nikah*. Yet, the legal question before this Court is not whether such a transaction appears curious, but whether the entry in the

registered *Nikah Nama* can be disregarded on the basis of conjecture or assumptions drawn from a prior sale deed between the spouses.

7. The *Nikah Nama*, being a registered document, enjoys a presumption of truth. In present case, Column No.16 of the *Nikah Nama* expressly mentions a “five marla house” as *Haq Mahr*. There is no note or recital anywhere in that document to the effect that such *Mahr* had already been paid/transferred through any sale deed prior to the solemnization of *Nikah*. Equally, the respondent in his written statement did not plead that the property transferred ten days prior to the marriage, by way of sale, was intended to be *Haq Mahr*; rather, his stance was that no such *Mahr* was ever settled and that he had been deceived into executing a sale deed. Para No.1 of the written statement reads as under:

”یہ کہ فقرہ نمبر 1 عرضید عویٰ صرف تاریخ نکاح کی حد تک درست ہے۔ بقیہ فقرہ غلط ہے تسلیم نہ ہے فریقین کی شادی پسند کی Love Marriage ہے۔ مدعا علیہ میلی شہر سے کام ضروری ختم کر کے اپنے گھر حاصل پور جا رہا تھا کہ کیا دیکھتا ہے کہ موٹر سائیکل کا ایکسیڈنٹ ہوا ہے جس میں ایک عورت اور بچہ سوار تھے مدعا علیہ گاڑی روک کر زخمیوں کی امداد کرنا چاہتا ہے کہ ایک اور موٹر سائیکل آکر رکتا ہے اس پر ایک اور لڑکی سوار ہوتی ہے جو شور کر رہی ہوتی ہے اباجی موٹر سائیکل روکیں زخمی ہونے والی میرے سکول کی ٹیچر ہے مدعا علیہ زخمی بچہ اور عورت کو اپنی گاڑی میں ڈال کر ہسپتال لے جانا چاہتا ہے تو جو لڑکی اپنے باپ کے ساتھ تھی وہ مدعیہ بھی وہ بھی گاڑی مدعا علیہ بیٹھ جاتی ہے یہاں سے مدعیہ اور مدعا علیہ کی Love Story شروع ہوتی ہے Love Story شروع ہوتے ہوئے بات ملاقاتوں وعدہ وعید تک پہنچ جاتی ہے مدعا علیہ اپنے گھر والوں سے چوری چھپا کر مدعیہ سے شادی کر لیتا ہے اور مدعیہ اور گھر والے مدعیہ کی خواہش پر مدعیہ وغیرہ کے گھر میں ”گھر جوائی“ کے طور پر رہائش پزیر ہو جاتا کوئی شرط حق المہر طے نہ ہوئی۔ کوئی سامان جہیز مدعیہ کو نہ دیا جاتا ہے مدعیہ کی کوئی رخصتی نہ ہوئی ہے۔“

(Emphasis supplied)

Having taken above quoted position, the respondent could not subsequently derive advantage from the sale transaction, prior to the marriage, by portraying it as satisfaction of *Haq Mahr*. This contradictory stance defeats his own defence and the case of the

respondent falls under the clutches of maxim *Allegans Contraria Non Est Audiendus* (A person who alleges things contradictory to each other is not to be heard) disentitling the respondent to any relief. Moreover, it is settled principle of law that evidence beyond pleadings has no value.

8. Suffice to observe that the law does not prohibit a man from selling property to a woman whom he later marries. However, when a registered *Nikah Nama* specifically records the subject matter of *Haq Mahr*, and there is no pleading or proof of its prior discharge, the presumption attached to such document must prevail. The Appellate Court below, while overlooking this settled principle, rendered its findings on the basis of assumption.

9. Insofar as findings to the extent of dowry articles are concerned, both the Courts below have concurrently held in favour of the petitioner and awarded certain dowry articles or alternate value of Rs.200,000/-. No misreading and non-reading of evidence could be pointed out by learned counsel for the petitioner. In case reported as *M. Hamad Hassan v. Mst. Isma Bukhari and 2 others* (2023 SCMR 1434) the Hon'ble Supreme Court of Pakistan has held that findings of fact are not to be interfered with in constitutional jurisdiction unless shown to be perverse, arbitrary, or based on misreading or non-reading of evidence. No such infirmity has been pointed out in the present case.

10. In view of the above discussion, the finding of the Appellate Court below to the extent of disallowing the claim of *Haq Mahr* only is unsustainable. The judgment and decree of the Family Court dated 11.03.2024 is restored.

11. Petition is **allowed** in above terms.

(ANWAAR HUSSAIN)
JUDGE

Approved for reporting.

Judge

Order was announced in Open Court and dictated on the same date, however, finalized/signed on 30.10.2025.

Maqsood